

M/S Tulsi Castle v. Ashutosh Kumar Srivastava, G.M., Lucknow Electric Supply

Allahabad High Court, Lucknow Bench · Single Judge · 1 November 2023 · 2023:AHC-LKO:71745 · Contempt Application (Civil) No. 2214 of 2017 · **Contempt petition dismissed on a finding of compliance; the new-connection application had been rejected by a reasoned order of the Sub-Divisional Officer; liberty granted to approach the competent authority/court.**

HEADNOTE

A civil contempt application alleging non-compliance with a writ order directing the electricity authority to dispose of the applicant's new-connection application after hearing an objector was dismissed on a finding of compliance. The Sub-Divisional Officer had rejected the application by a reasoned order dated 12 June 2017 after considering the objections and shortcomings, and no reply to the compliance counter-affidavit had been filed; a review of the writ order had also been dismissed. Contempt was not made out, and the applicant was left at liberty to approach the competent authority or court for redressal.

FACTUAL SUMMARY

M/S Tulsi Castle, a partnership firm, sought a mandamus for an electricity connection to premises at 12, Rani Laxmi Bai Marg, Lucknow, to run the 'Hazrat Darbar' restaurant and bar. An earlier writ had been withdrawn to avail the remedy under the U.P. Electricity Supply Code, 2005; a further writ (W.P. No. 10091(M/B) of 2017) was dismissed on 9 May 2017 as a successive petition, but with permission to pursue the pending connection application, which the authority was directed to decide after hearing an objecting respondent who contended the firm's credentials were doubtful. This contempt application alleged non-compliance with that direction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::new-connection

Contempt — compliance with a direction to dispose of a new-connection application

HOLDING

A direction to the electricity authority to dispose of a new-connection application after affording an objector a hearing is complied with when the Sub-Divisional Officer rejects the application by a reasoned order after considering the objections; the contempt application is then dismissed, no contempt being made out, with liberty to the applicant to pursue redress before the competent authority or court. ¶ 5-7

FLAG Contempt-compliance disposal; the order construes no specific Supply Code clause, so keyed to the new-connection provision bucket. The merits of the SDO's rejection were not adjudicated.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE SUB-DIVISIONAL OFFICER'S REASONED REJECTION OF THE CONNECTION APPLICATION

Not adjudicated; the contempt court found only compliance with the writ direction and left the applicant at liberty to approach the competent authority/court. ¶ 7